

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS X

KENYARTA CHARLEMAGNE,

Index No.

Plaintiff,

ECF

Verified Complaint
Plaintiff Designates Kings
County as the Place of Trial
Jury Trial Demanded

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT,
POLICE OFFICER, ALEKSANDR CHEKALIN, TAX ID No.,
966501, OF THE 73rd POLICE PRECINCT, IN HIS INDIVIDUAL
CAPACITY AND POLICE OFFICER RICHARD LIGUORI,
TAX ID, No. 950752, OF THE 73rd PRECINCT, IN HIS INDIVIDUAL
CAPACITY, AND POLICE OFFICER JOHN DOE NO.1, IN HIS
INDIVIDUAL CAPACITY.

Defendants,

X

Plaintiff, Kenyarta Charlemagne by his attorney, Welton K. Wisham, Esq., of The Law office of Welton K. Wisham, for his Complaint, alleges upon information and belief the following against Defendants, The City of New York, The New York City Police Department, and police officers, Aleksandr Chekalin, Richard Liguoir, and police officer John Doe No.1, that;

PRELIMINARY STATEMENT

1. This action arises out of wrongful arrest of Mr. Kenyarta Charlemagne on June 7, 2020, by the Defendant police officers and the New York City Police Department in front of 111 Thatford Ave, Brooklyn, New York without probable cause and or legal justification.
2. Defendants, Police officers Aleksandr Chekalin, Richard Liguoir, and John Doe No. 1, knowingly and willfully abused their authority by arresting Mr. Charlemagne without probable cause to have reasonably believed that Plaintiff had committed a crime.

3. Mr. Charlemagne, an African American, was standing outside his residence along with several other African American males at approximately 1:am in the morning of June 7, 2020.

4. Mr. Charlemagne was approached by the Defendant police officers Aleksandr Chekalin, and Richard Liguoir who were inside their police vehicle driving down Thatford Ave., Brooklyn, New York when the officers observed several black males standing in front of 111 Thatford Ave. none of whom were engaged in criminal activity.

5. The officers approached Mr. Charlemagne and began to question the Plaintiff about the ownership of a vehicle parked in front of 111 Thatford Ave. Brooklyn, New York.

6. The officers asked the Plaintiff “ Why is the motor running?”.

7. Plaintiff responded by informing the officers that “ that’s my friend’s car”!.” What’s the problem?”

8. The officer believed to be officer Chekalin, then told Mr. Charlemagne “ that’s a ticket”!

9. Mr. Charlemagne was arrested and held in police custody for two days without probable cause and who now brings this action pursuant to 42 U.S.C Section 1983, and under New York State Law to redress the violations of his constitutional rights arising under the Fourth, and Fourteenth Amendments to the Constitution of the United States and pursuant to New York State law.

JURISDICTION AND VENUE

10. This Court has personal jurisdiction over the Defendants because the Defendants committed a tortuous act against the Plaintiff inside the State of New York, Kings County which caused serious injury to the Plaintiff, a resident of the City of Brooklyn, State of New York.

11. This action arises under the Fourth, and Fourteenth Amendments to the Constitution of the United States, and pursuant to 42 U.S.C Section 1983, and 1988, and under New York State Law.

12. This Court has concurrent jurisdiction over Plaintiff's civil rights causes of action predicated under 42 U. S. C. Section, 1983.

13. Venue is proper in this Court pursuant to CPLR Section 503. Kings County is the place for trial by jury because the Plaintiff was at all times relevant herein a resident of the City of Brooklyn, New York and because Kings County is the County for which the events giving rise to the causes of action complained of occurred.

PARTIES

14. Plaintiff, Kenyarta Charlemagne is an African American male, a father of a minor child and husband to Jamara Lawrence who at all relevant times herein was and still remains a resident of the City of Brooklyn, New York, Kings County.

15. Defendant, City of New York is a municipal corporation duly organized under the laws of the State of New York.

16. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

17. That at all times relevant hereto, the City of New York employed the Defendant Officers involved in this incident.

18. That at all times relevant herein, Defendants Police officers Aleksandr Chekalin, Richard Liguoir, and police officer John Doe No.1, were duly appointed as police officer of the New York City Police Department who willfully and intentionally caused Mr. Charlemagne to be held in custody for approximately forty-eight (48) hours without probable cause.

19. That the individual police officers named herein were at all times mentioned in this complaint, agents, servants, and employees, acting within the scope of their employment in the New York City Police Department who acted within their individual, and official capacity, and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York, and the City of New York.

20. That at all times relevant hereto, the New York City Police Department ("NYPD"), was responsible for the policies, practices, supervision, implementation, and conduct of the Defendant police officers.

21. That at all times relevant hereto, Defendant City of New York, acting through the New York Police Department (or "NYPD"), was responsible for the New York City Police Department practices, policies and procedures including the appointment, training, supervision, discipline and retention of the Defendant officers and of all NYPD officers.

22. That at all times relevant hereto, Defendant New York City Police Department was responsible for enforcing the rules of the NYPD, and for ensuring that on-duty NYPD personnel obey the laws of the United States and the State of New York.

23. That at all relevant times, the individual police officers involved in this incident acted under the color of state law.

24. At all times relevant herein , the police officers involved in the underlying incident, Aleksandr Chekalin, Richard Liguoir, and police officer John Doe No.1 were and still remain police officers employed by the New York City Police Department who are believed to be assigned to the 73rd police precinct who acted in the capacity of agent, servant and employee of

the City of New York, New York City Police Department within the scope of their employment and as such acted under color of state law.

JURY DEMAND

25. Plaintiff demands trial by jury.

NOTICE OF CLAIM

26. On or about June 7, 2020,, Plaintiff, in furtherance of his New York State causes of action, filed a timely notice of claim well within the statutory requirement of ninety days from the date of the incident alleged herein against the named Defendants and the City of New York, New York City Police Department and police officers Aleksandr Chekalin, Richard Liguoir in compliance with General Municipal Law Section 50-h.

27. That more than 30 days have elapsed since service of said notice, and the City has failed to pay or adjust the claim.

28. This action has been commenced within one year and ninety days of the date of the incident complained of and of the filing of the notice of claim.

29. That the Defendants have wholly refused and neglected to make any adjustment or payment thereof.

30. That the Plaintiff has satisfactorily complied with all pertinent statutory requirements prior to the commencement of this action.

31. That by reason of the foregoing, Plaintiff Kenyarta Charlemagne has been damaged in a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

STATEMENT OF FACTS

32. On or about **June 7, 2020** at approximately 1:00 a.m., Mr. Charlemagne was standing in front of his home located at 111 Thatford Ave, Brooklyn New York with several of his friends when the Mr. Charlemagne observed a New York City Police vehicle with two police officers inside the vehicle drive past his home.

33. The one of the officers who is believed to be the driver the vehicle observed the Mr. Charlemagne and his friends standing outside on the street.

34. Neither the Mr. Charlemagne or his friends were involved in any criminal activity. Nevertheless, the police officers reversed his vehicle and drove back to where the Mr. Charlemagne and his group of six African American friends were standing and got out of the vehicle and approached the Mr. Charlemagne who was standing next to a motor vehicle which was owned by one of Mr. Charlemagne's friends.

35. One of the officers believed to be Aleksandr Chekalin got out of his vehicle and approached the Mr. Charlemagne and proceeded to question Mr. Charlemagne.

36. Officer Chekalin then asked the Mr. Charlemagne, "who's car is this"?

37. Mr. Charlemagne responded by saying "that's my friend's car."

38. Officer Chekalin then asked Mr. Charlemagne "why is the motor running"?

39. Mr. Charlemagne responded by simply asking the officer, "What's the problem"?

40. Officer Chekalin told Mr. Charlemagne "that's a ticket"!

41. Mr. Charlemagne then placed his hands inside the vehicle and shut off the engine.

42. Officer Chekalin appeared to be seeking a confrontation, and asked Mr. Charlemagne for his identification or driver's license.

43. Mr. Charlemagne informed the officer that his home was right in front of the officer and that Mr. Charlemagne's identification was inside his home.

44. Mr. Charlemagne politely asked the officer "why do you need my identification"?

45. Officer Chekalin continued to assert that "that's a traffic stop"!

46. Mr. Charlemagne was shocked at the officers' unfounded assertion and told the officer that "that's not a traffic e stop", "I wasn't even driving; how could that be a traffic stop"!

47. Officer Chekalin proceeded to place his hands on Mr. Charlemagne and turned Mr. Charlemagne around and placed Plaintiff's hands in handcuffs while the other police officer told Mr. Charlemagne "just relax".

48. One of Mr. Charlemagne's friends who was standing outside next to the police officers, told the officers "I can go get his [Mr. Charlemagne's] identification."

49. One of the officers said "Ok go ahead"! Mr. Charlemagne however, was placed inside the police vehicle without being charged or accused of committing any crime.

50. As the officers placed Plaintiff inside the police vehicle, Mr., Charlemagne's wife, Jamara Lawrence, came downstairs from her home with Mr. Charlemagne's driver's license bearing Mr. Charlemagne's photograph to show the Defendant police officers.

51. One of the officers observed Mr. Charlemagne's wife with her husband's identification in her hand and began to open the door to the police vehicle in an apparent attempt to release Mr. Charlemagne when officer Chekalin pushed the other officer aside and told the officer "let's take him down"!

52. The officers drove off with Mr. Charlemagne in the back seat of the police vehicle in handcuffs and drove Plaintiff to the 73rd police precinct located at 1470 East New York Ave, Brooklyn, New York.

53. Mr. Charlemagne was clearly shaken by the abuse of authority by officer Chekalin and by his partners' deliberate indifference to an obvious constitutional violation of Mr. Charlemagne's right to be free from an unreasonable seizure.

54. Upon arriving at the 73rd precinct officer Chekalin and his partner searched Mr. Charlemagne throughout his body.

55. One of the officers for some unknown reason cut Mr. Charlemagne's shoe laces and the laces from around Mr. Charlemagne's sweatpants that he was wearing.

56. Mr. Charlemagne asked the officers "what am I being charged with"?

57. Officer Chekalin replied by informing the Mr. Charlemagne that he was being charged with "Disorderly conduct"!

58. Neither officer explained to the Mr. Charlemagne what constituted his "disorderly conduct".

59. Mr. Charlemagne repeatedly asked the arresting officers "what did I do to get this charge" The officers ignored the Mr. Charlemagne and just walked away.

60. Mr. Charlemagne was placed in a jail cell along with three other inmates.

61. That sometime later inside the 73rd precinct, one of the officers approached Mr. Charlemagne and asked him his name.

62. Plaintiff responded by saying "Kenyarda Charlemagne".

63. Mr. Charlemagne also gave the officers his date of birth and home address to assist the officers in his identification because the officers had initially refused to take his identification from Mr. Charlemagne's wife in front of Plaintiff's home where he was arrested.

64. Approximately one hour later one of the officers came to the cell where the officers had placed the Plaintiff and asked Mr. Charlemagne "are you sure about the name you gave us"?

65. Mr. Charlemagne responded by saying "Yes I'm sure"!

66. The officers then asked the Mr. Charlemagne "who is Darius Cole"?

67. Mr. Charlemagne told the officers "I have no idea."!

68. Several minutes later the same police officer came back to the jail cell where Mr. Charlemagne had been placed and told Mr. Charlemagne, "You are Darius Cole, you've been locked up for rape and you're a sex offender"!

69. The officer made his startling remarks in front of three other inmates who were in the same cell as the Mr. Charlemagne.

70. Mr. Charlemagne repeatedly informed this officer that "I'm not Darius Cole, I'm Kenyarta Charlemagne"!

71. Mr. Charlemagne told the officers to call his wife who had his identification which the arresting officers refused to review when Mr. Charlemagne's wife attempted to present to the arresting officers in front of Mr. Charlemagne's home prior to the officers driving Mr. Charlemagne to the 73rd police precinct.

72. The officers in the 73rd police precinct refused to recognize the fact that the person whom they arrested in front of 111 Thatford Street, Brooklyn, New York was indeed Mr. Kenyarta Charlemagne.

73. Approximately two hours later, Mr. Charlemagne was fingerprinted and photographed.

74. As Mr. Charlemagne was being fingerprinted, Mr. Charlemagne saw one of the Defendant police officers with Mr. Charlemagne's identification, a New York State Driver's License bearing the name Kenyarta Charlemagne along with a photo that clearly showed the face of Kenyarta Charlemagne not Darius Cole. Mr. Charlemagne later learned that his wife had gone to the 73rd precinct with Mr. Charlemagne's drivers' license.

75. That the Defendant police officers continued to process and input information into their computers that the person in custody was Darius Cole, in total disregard that they knew the person whom they arrested was in fact Mr. Kenyarta Charlemagne.

76. As the officer was fingerprinting the Mr. Charlemagne, Mr. Charlemagne told the officer " You have my identification in front of you, so you know I'm not Darius Cole. "!

77. The officer ignored the Mr. Charlemagne and told Mr. Charlemagne " You could be charged with fraud identify"!

78. Mr. Charlemagne with tears in his eyes said to this officer, " I don't know why yall trying to put this on me, I'm not Darius Cole"

79. The officer ignored the Mr. Charlemagne and continued typing the name Darius Cole into the computer and then returned Mr. Charlemagne to a jail cell.

80. Mr. Charlemagne saw the officer type into the computer " Darius Cole, Intentional Fraud."

81. The following morning one of the officers at the 73rd precinct asked Mr. Charlemagne if he wanted to make a phone call," you're going to be going down to central booking"! Mr. Charlemagne, thinking about his four-year-old son and his loving wife, teared up and continued

to ask the officer “ why are you doing this to me? I’m not Darius Cole, I’m Kenyarta Charlemagne”!

82. Mr. Charlemagne called his wife from the 73rd precinct and informed her that the police were taking him to central booking.

83. Mr. Charlemagne’ wife told her husband over the phone that the police had told her when she went to the precinct that her husband was going to be released from custody in a matter of hours from the precinct.

84. On June 8, 2020, Mr. Charlemagne was taken to central booking located 120 Schermerhorn St, Brooklyn, New York.

85. Plaintiff was brought into central booking in chains shackled to several other inmates.

86. The Defendant officers called the names of each inmate attached to the chain and when the officers approached Mr. Charlemagne, the police officers called the name “ Darius Cole”.

87. Again, the police at central booking all ignored the fact that the Mr. Charlemagne was Kenyarta Charlemagne and not Darius Cole.

88. That prior to the officers transferring Mr. Charlemagne to central booking, the Plaintiff asked the officers for his identification which his wife had brought to the 3rd police precinct so that the Plaintiff could show to the officers at central booking that he was in fact Kenyarta Charlemagne and not Darius Cole.

89. That officers at the 73rd police precinct, told Mr. Charlemagne that his identification was not at the precinct and that “ it’s not there, I think your arresting officer left with it and went home”.

90. Mr. Charlemagne again tried to explain to the officers that he was not this guy, Darius Cole to no avail.

91. Mr. Charlemagne was photographed and fingerprinted at central booking and placed in a jail cell.

92. As Mr. Charlemagne was being placed in a cell he kept repeating that he was not Darius Cole. “ I’m Kenyarta Charlemagne, I’m Kenyarta Charlemagne”! The officers at central booking said “tell it to the judge”!

93. That after a period of several hours of being ignored by police officers at central booking, and after a shift change, Mr. Charlemagne saw different police officers who had just started a new shift.

94. Mr. Charlemagne begged the officers to let him out of jail because they had the wrong person and the police knew that he was not Darius Cole. I’m Kenyarta Charlemagne , I’m not Darius Cole, the Mr. Charlemagne cried aloud to the officers who had just arrived on duty.

95. Mr. Charlemagne told one of the officers who had just arrived at central booking that “ I you’re your help!” I’m not Darius Cole”! I’m scared, I don’t want to get corona virus being in jail, I don’t want to take coronavirus to my son”!

96. An unknown police officer came back to cell no. 7, and yelled out Darius Cole, Mr. Charlemagne was let out of cell 7, and was taken to the front desk where he saw his paperwork with his New York State Identification bearing his photograph and the name Kenyarta Charlemagne.

97. The officer at the front desk told Mr. Charlemagne that “ The officer at the 73rd fucked up, you can get a lawsuit against the officer that arrested you”!

98. Mr. Charlemagne was finally released from custody without any charged filed against him. He was held for approximately forty-eight hours without being arraigned.

99. Mr. Charlemagne was forced to walk all the way home without any identification.

100. That Mr. Charlemagne was forced to walk home from central booking after his release.

101. The New York City Police Department has established an unlawful pattern and practice which is so widespread that it has become an informal policy of falsely arresting African Americans and knowingly and willfully withholding arrest reports associated with the unlawful arrest which names the officers involved in such arrests.

102. That the custom and practice intentionally fail to record the names of all the police officers who arrested the Mr. Charlemagne and other African Americans who are falsely arrested and released without being arraigned in criminal court, and without being given arrest reports indicating the nature of the arrest and the names of the arresting officers.

103. The pattern and practice spell violate the Equal Protection Clause of the Fourteenth Amendment to the Constitution of the United States and constitutes a practice to shield police officers from liability under 42 U.S.C Section 1983.

104. The Defendant police officers Aleksandr Chekalin, and Richard Liguoir engaged in a blatant abuse of power and a violation of law for which Mr. Charlemagne demands compensation.

105. That as a direct and proximate result of the acts, and omissions of the Defendants herein described, Mr. Charlemagne was caused to suffer severe and extensive emotional pain and anguish .

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANT POLICE
OFFICERS ALEKSANDR CHEKALIN AND RICHARD LIGUOIR FOR VIOLATING
PLAINTIFF'S RIGHT TO BE FREE FROM AN UNREASONABLE SEARCH AND
SEIZURE UNDER THE FOURTH AMENDMENT TO THE CONSTITUTION OF THE
UNITED STATES PURSUANT TO 42 U. S. C. SECTION 1983**

106. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “1” through “ 105, with the same force, and effect, as though more fully set forth at length herein.

107. Defendants police officers Aleksandr Chekalin, and Richard Liguoir unreasonably initiated Plaintiff’s arrest, and detention and held Mr. Charlemagne in police custody for approximately forty-eight (48)hours without probable cause to have reasonably believed that Mr. Charlemagne had committed a crime.

108. That the Defendant officers knew that there was no legitimate legal basis for placing handcuffs on the Plaintiff in front of his residence at 111 Thatford Ave. Brooklyn, New York on June 7, 2020.

109. The officers failed to obtain information from Mr. Charlemagne prior to his arrest to challenge any allegation made by his wife that Plaintiff had committed a crime.

110. That Plaintiff was handcuffed and held in custody and was not free to leave.

111. Plaintiff in this instant action commenced his lawsuit against the Defendants pursuant to 42 U.S.C Section 1983 which states in relevant part that:

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress... 42 U.S.C Section 1983,

112. Plaintiffs’ federal claims are brought pursuant to the Fourth Amendment to the Constitution of the United States for the Defendants unreasonable search and seizure.

113. The Defendants police officers knowingly and willfully violated Plaintiff’s right to be free from and unreason search and seizure by their acts more fully described above which caused Mr. Charlemagne to be held in custody without probable cause for forty-eight hours..

114. That the manner in which the Plaintiff was held in custody was unreasonable under the circumstances as set forth herein.

115. Mr. Charlemagne was unduly harassed, and ridiculed and held against his will by the Defendant officers without reason or legal justification.

116. That the Defendant's conspired together to violate Plaintiffs' rights to be free from the unreasonable search, seizure and deprivation of liberty without due process of law.

117. In the manner described herein, the Defendants acted with deliberate indifference and with reckless disregard of the Plaintiff's constitutional rights.

118. Plaintiff was deprived of his right to be free and secured in their home and to free from false arrest and imprisonment, unreasonable search and seizure, without probable cause or legal justification.

119. As a direct and proximate result of the conspiracy between the Defendant officers, Mr. Charlemagne was unreasonably searched, seized, and falsely imprisoned in violation of Plaintiff's rights under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

120. By reason of the foregoing, Plaintiff was intentionally confined without privilege and without probable by the Defendant police officers.

121. As a consequence thereof, Mr. Charlemagne has been greatly injured.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST THE CITY OF NEW YORK
UNDER 42 U.S.C. SECTION 1983, FOR FAILURE TO TRAIN, SUPERVISE OR
DISCIPLINE DEFENDANTS, POLICE OFFICERS ALEKSANDR CHEKALIN AND
RICHARD LIGUOIR.**

122. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1 through 121", with the same force and effect as though more fully set forth at length herein.

123. That at all times herein mentioned the individual Defendants of the New York City Police Department involved in the incident complained of herein, were negligently hired, trained, supervised, disciplined, and retained by the City of New York.

124. That the acts complained of herein resulted from the Defendants City of New York, and the New York City Police Department, through their agents, servants and employees, breaching its duty to properly assign, train, supervise, discipline and retained officers Aleksandr Chekalin, and Richard Liguoir and other employees within the New York City Police Department which caused Plaintiff to remain incarcerated for forty eight hours without probable cause.

125. That the City of New York failure to train, supervise, or discipline Defendant police officers named herein caused Plaintiff Charlemagne to endure an unlawful detention, incarceration and extreme emotional stress as a direct result thereof.

126. That the failure by the City of New York to properly train, supervise or discipline the Defendant police officers and other members within the New York City Police Department constituted a practice of acquiescence, and a tolerance of ongoing unconstitutional detentions, and seizures, which allowed officers Aleksandr Chekalin, and Richard Liguoir and John Doe No. 1, to believe that they could violate Plaintiffs' constitutional rights with impunity.

127. By reason of the foregoing, officers Aleksandr Chekalin, Richard Liguoir, and Doe No. 1, and other members of the New York City Police Department, its agents, servants and employees, failed and refused to use such care in the performance of their duties as a reasonably prudent police officer would have used under similar circumstances, thus resulting in significant emotional injuries to the Plaintiff including his loss of liberty and permanent emotional distress.

128. That the City of New York should be held liable for the underlying constitutional violations committed by non-policy makers employees due to the fact that the City's policy and

customs of arresting individuals such as Mr. Charlemagne is objectively unreasonable and deliberately indifferent to the likelihood that a constitutional violation would occur.

129. That by the conduct of the Defendants, as described herein, the City of New York is liable to the Plaintiff under 42 U.S.C. Section 1983 for the violations, under color of state law for violating Plaintiff's right to be free from deprivation of liberty without due process of law under the Fourth and Fourteenth Amendment to the United States Constitution.

130. That the failure of the City of New York, and the New York City Police Department to adequately train, supervise or discipline or in any other way control the behavior of the officers associated with Mr. Charlemagne's unlawful arrest and detention in the exercise of their official functions, is evidence of the reckless lack of cautious disregard for the rights of the Plaintiff, Kenyarta Charlemagne.

131. That such conduct, or lack thereof, exhibited a lack of the degree of due care which a reasonable and prudent police officer would have shown in executing the duties as police officers within the New York City Police Department.

132. That the need for more or better supervision, or training to protect against the constitutional violation was patently obvious which the City of New York and the New York City Police Department was made aware of and knowingly and willfully failed to provide.

133. As consequence thereof, Plaintiff has been greatly injured.

**AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
AGAINST POLICE OFFICERS, ALEKSANDR CHEKALIN, RICHARD LIGUOIR
AND JOHN NO.1, PURSUANT TO 42 U. S. C SECTION 1983, FOR THE VIOLATION
OF PLAINTIFF'S RIGHTS SECURED UNDER THE DUE PROCESS CLAUSE OF THE
FOURTEENTH AMENDMENT TO THE CONSTITUTION OF THE UNITED STATES.**

134. That Plaintiffs repeats, reiterates and realleges each and every allegation

contained in Paragraphs "1 through 133", with the same force and effect as though more fully set forth at length here herein.

135. That the Defendants have employed a gross abuse of power, unfair procedures and gross violation of plaintiffs' right to free from the deprivation of liberty without due process of law.

136. As direct and proximate result of the acts and omissions of the Defendant police officers Aleksandr Chekalin, Richard Liguoir and John Doe No. 1, including their supervisors and other members of the New York City Police Department, Plaintiff Charlemagne has been greatly humiliated, embarrassed, and injured, and has been caused to suffer extreme emotional pain, suffering, and mental anguish.

**AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS POLICE OFFICERS, ALEKSANDR CHEKALIN, RICHARD LIGUOIR AND JOHN DOE. NO 1, FOR FALSE ARREST AND FALSE IMPRISONMENT PURSUANT TO NEW YORK
STATE LAW**

137. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered "1" through " 136", with the same force, and effect, as though more fully set forth at length herein.

138. That Defendants initiated Plaintiff's arrest, imprisonment and detention without probable cause to have reasonably believed that Mr. Charlemagne had been involved in any form of criminal activity..

139. That the Defendants, their agents, servants and/or employees, intentionally, and without probable cause, or legal justification, unlawfully, and unreasonably, falsely imprisoned, detained, and restrained Plaintiff for forty-eight hours without legal justification.

140. That at all times herein mentioned, the Plaintiff was falsely imprisoned, detained, and

restrained by the Defendants police officers who were acting under color of law and within the scope of their employment.

141. That Mr. Charlemagne was not free to leave or move about due to his unlawful seizure by the Defendants, police officers Aleksandr Chekalin, Richard Liguoir John Doe No.1.

142. Mr. Charlemagne was conscious of his confinement and did not consent to such confinement.

143. That as a direct and proximate result of the physical restraint of the Plaintiff by the Defendants, their agents, servants and/or employees, Plaintiff suffered severe emotional distress, trauma, humiliation, embarrassment, ridicule, scorn, and deprivation of his civil rights and freedom under the laws of the State of New York pursuant to Article 1 Section 12.

144. That the Plaintiff was intentionally confined without privilege or probable cause and that the Defendants could not have reasonably believed that Mr. Charlemagne had committed a crime.

145. That the false imprisonment, detention, and restriction of Plaintiff's freedom, constituted a malicious act, and was a wanton and reckless degradation of the Plaintiff's liberty and freedom.

146. That by reason of the foregoing Plaintiff, has been damaged a sum which exceeds the jurisdictional limits of all lower courts, which otherwise would have jurisdiction over this action.

**AS AND FOR A FIFTH CAUSE OF ACTION AGAINST THE CITY OF NEW
YORK FOR RESPONDEAT SUPERIOR.**

147. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs Numbered “ 1” through “146” with the same force and effect as though more fully set forth at length herein.

148. That at all relevant times the Defendants acted under pretense of color of state law and the alleged underlying acts were without authority of law in abuse of governmental powers.

149. That the municipal Defendants City of New York, and the New York City Police Department hired, and supervised, Defendants, police officers Aleksandr Chekalin, Richard Liguoir and John Doe No.1.

150. Officers Aleksandr Chekalin, Richard Liguoir and John Doe No. 1, falsely arrested, detained and confined Plaintiff without probable cause.

151. The Defendant police officers knew or should have known that Mr. Charlemagne had not been engaged in criminal activity at the time the Defendant officers approached the Plaintiff at 111 Thatford Ave. Brooklyn, New York on June 7, 2020..

152. That the acts committed by the Defendant officers were conducted while the officers were acting within the scope of their employment as employees of the New York City Police Department.

153. As a result, the City of New and the New York City Police Department are liable for the unlawful acts of police officers Aleksandr Chekalin, Richard Liguoir and John Doe No. 1, under the well-established doctrine of Respondeat Superior.

154. That at all relevant times, all defendant employees of the City of New York were acting for, upon, and in furtherance of the business of their employer and within the scope of their employment.

155. That as a direct and proximate result of the acts, and omissions of the Defendants herein described, Mr. Charlemagne was caused to suffer severe and extensive emotional pain, anguish and suffering and harm.

156. Consequently, the City is liable under the doctrine of respondeat superior for their tortious actions.

WHEREFORE, Plaintiff demands judgment and relief against Defendants jointly and severally as follows:

A. Awarding Plaintiff compensatory damages in an amount that is fair and equitable to be fixed at trial.

B. Awarding punitive damages to Plaintiff in an amount that would punish Defendants police officers Aleksandr Chekalin, Richard Liguoir and John Doe No.1, for their willful, wanton, reckless and malicious misconduct alleged in this Complaint that would effectively deter Defendants from future civil rights violations and other unlawful behavior in an amount to be determined at trial.

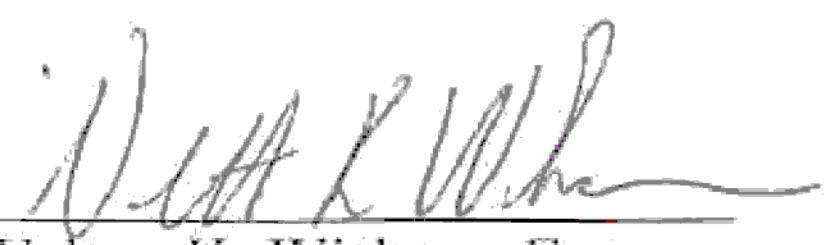
C. An award to plaintiff of the costs and disbursements herein.

D. An award of reasonable attorney fees pursuant to 42 U.S.C. Section 1988.

E. Granting such other and further relief as this Court may deem just and proper.

Dated: August 14, 2020

Bronx, New York

By 
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